

CLIC Case 0009**Country/Court:** Chile, Supreme Court**Decision number/date:** Case No. 3524-18, 2019-10-24**Crime / Issue:** Crimes Against Humanity**Abstract prepared by:** Philipp Gartner

The convicted individuals were sentenced in Chile on the grounds of the conviction that they committed aggravated kidnapping (§141 paragraph 3 Penal Code) and crimes against humanity. It was alleged that in September 1974, as part of the systematic operations of the National Intelligence Directorate (DINA) during the "Operación Colombo," they participated in the abduction, torture, and forced disappearance of a political opponent who was a member of the Revolutionary Left Movement (MIR). Consequently, the trial court found that these allegations were true and sentenced the primary perpetrators to thirteen years of imprisonment, a decision that was subsequently reviewed and modified regarding certain co-perpetrators' penalties by the Court of Appeals of Santiago.

The convicted individuals subsequently lodged an appeal on points of law, raising three main arguments. First, they claimed that the lower courts relied on insufficient and contradictory circumstantial evidence to establish their criminal participation, violating the rules governing judicial presumptions (§488 Code of Criminal Procedure). Second, it was argued that the lower courts failed to apply the military defense of obedience to superior orders (§214 Code of Military Justice). Lastly, they raised concerns that the lower courts improperly denied the application of gradual prescription (*media prescripción*) under Article 103 of the Penal Code, which allows for a reduction of the sentence based on the extensive passage of time.

Regarding the first point of appeal, the Supreme Court ("the Court") examined the rules governing circumstantial evidence under Article 488 of the Code of Criminal Procedure. It held that the evaluation and weighing of evidence are exclusive prerogatives of the trial judges and escape the control of an appeal on points of law unless there is a clear violation of the laws of logic. The Court found that the circumstantial evidence regarding the defendants' operational functions within the DINA was precise, grave, and concordant. Consequently, it determined that the lower courts did not commit an error of law and rejected this argument.

Regarding the second point of appeal, the Court evaluated the defense of obedience to superior orders under Article 214 of the Code of Military Justice. It held that this defense is entirely inadmissible in cases involving crimes against humanity and systematic human rights violations. The Court reasoned that state agents have an absolute obligation to refuse orders that

entail the commission of egregious crimes, such as forced disappearance and torture, meaning that such orders carry no legal force to excuse criminal liability.

Lastly, the Court referred to the requested application of gradual prescription under Article 103 of the Penal Code. It held that because the offense constitutes a crime against humanity, international human rights law and *jus cogens* norms strictly preclude the application of any domestic statutory limitations, whether total or partial, that would lead to disproportionate sentences or partial impunity. Furthermore, it noted that Article 103 merely grants a discretionary faculty to judges rather than an absolute obligation to reduce sentences, and that for permanent crimes like aggravated kidnapping, the limitation period cannot begin while the victim's whereabouts remain unknown. It concluded that the mitigating circumstance was legally inapplicable and dismissed the appeals.